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Case Number: 25PSCV00176 Hearing Date: August 27, 2026 Dept: 6

CASE NAME: Morgan Juliana Nole v. Volkswagen Group of America

Plaintiff's Motion for Attorney Fees, Costs and Expenses

TENTATIVE RULING

The Court GRANTS Plaintiff's Motion for Attorney Fees, Costs and Expenses in the amount of \$25,403.00.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a Song-Beverly Action. On January 16, 2025, plaintiff Morgan Juliana Nole (Plaintiff) filed this action against defendant Volkswagen Group of America, Inc. (Defendant) and Does 1 to 50, alleging causes of action for violation of Song Beverly [sic] Consumer Warranty Act, breach of implied warranties pursuant to Song-Beverly, failure to promptly repurchase product pursuant to Song-Beverly, and failure to commence repairs within a reasonable time and to complete them within 30 days pursuant to Song-Beverly.

On June 22, 2026, Plaintiff moved for attorney fees, costs, and expenses. On August 14, 2026, Defendant opposed the Motion. On August 20, 2026, Plaintiff replied to Defendant's Opposition.

LEGAL STANDARD

"The following items are allowable as costs under Section 1032:... (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." (Code Civ. Proc., § 1033.5, subd. (a)(10).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th

99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 486-487.)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.'" (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]" (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

"The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (*569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 436-437.)

A verified fee bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

DISCUSSION

Summary of Arguments

Plaintiff moves under Civil Code section 1794, subdivision (d), as the prevailing party for an award of attorney fees, costs, and expenses in the amount of \$47,305.78, comprising \$32,827.10 in lodestar attorney fees (90.7 hours), \$2,130.55 in costs,[1] a 0.3 lodestar multiplier of \$9,848.13, and \$2,500 in anticipated reply and hearing time. Plaintiff contends the requested hourly rates — \$625.00 for Mr. Reza, \$425.00 for two associates, and lower rates for a law clerk, paralegal, and support staff — are reasonable and supported by counsel's experience and prior fee awards. Plaintiff argues the hours were reasonably incurred and were driven by Defendant's own conduct in declining her early repurchase demand and requiring discovery, a deposition, and mediation before agreeing to the same relief. Plaintiff further requests a 0.3 enhancement for the contingent risk and delay in payment.

In Opposition, Defendant argues this was a routine lemon law matter with no vehicle inspection, expert discovery, or trial, and that nothing about it justifies the fees sought. Defendant contends counsel's rates are unsupported by admissible evidence of prevailing Los Angeles rates, that reliance on the Laffey Matrix is misplaced, and that the court should instead apply the Real Rate Report to set rates of \$350.00 for partners and \$300.00 for associates. Defendant identifies specific billing objections — clerical tasks billed at professional rates, excessive time on template discovery, an inflated deposition entry, block billing, and vague or "confidential" client-communication entries. Defendant asks the Court to cap fees at no more than \$17,500, inclusive of all attorney and support time. Finally, Defendant argues a negative multiplier — not an enhancement — is warranted because the case was simple and the statute's one-way fee shifting reduced contingency risk.

In reply, Plaintiff contends that Defendant does not dispute prevailing-party status or entitlement, so the only issue is amount, and that the proposed \$17,500 cap is not a lodestar calculation because it neither states reasonable hours nor applies proposed rates to each timekeeper. Plaintiff argues *Tidrick v. FCA US LLC* controls and requires the Court to perform the lodestar analysis and tie any reduction to specific entries rather than impose an unexplained global cut. Plaintiff contends the Real Rate Report is unattached, unauthenticated, and drawn from non-comparable data, while her counsel's sworn qualifications are competent evidence of market rates. Plaintiff defends the challenged entries as substantive rather than clerical and adds actual "fees-on-fees" of \$3,312.50 for reviewing the Opposition and preparing the Reply. Plaintiff revises her request to \$42,675.23 with the 0.3 enhancement, or \$32,827.10 without it, plus fees-on-fees and hearing time.

Analysis

Prevailing Parties

There is no dispute that Plaintiff is the prevailing party and therefore entitled to recover attorney fees and costs. The parties' settlement agreement provides that such fees and costs may be determined by way of a noticed motion. (Reza Decl., Ex. C, ¶ (A)(3); Civ. Code, § 1794, subd. (d).) Defendant's Opposition also tacitly acknowledges Plaintiff is the prevailing party. (See generally, Opp.)

Hourly Rates

The Court finds Plaintiff's counsel's hourly rates somewhat excessive for the East Judicial District, specifically Ashkan Reza's \$625.00 hourly rate. "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) The Court also finds Plaintiff's paralegal hourly rate of \$225 for Mailei Bennett excessive.

This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at the rates requested comes with the expectation that the attorneys work in an efficient manner that reflects the elevated premium paid for their services. The Court considers this factor in addressing the reasonableness of the hours expended. As such, the Court will reduce Ashkan Reza's hourly rate to \$550.00. The Court will also reduce Mailei Bennett's hourly rate to \$175.00.

Hours Expended

Plaintiff also provided a verified fee bill, which is prima facie evidence that Plaintiff(s)' fees and costs listed therein were necessarily incurred. (Reza Decl., Ex. F; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564 [burden is on challenging party to point to specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].)

The Court finds Plaintiff's claimed fees somewhat excessive. This case been pending for approximately one and half years and was less than a year old when the parties settled. This case contains no motion practice from Plaintiff other than for this Motion. The only other motion filed was Defendant's Motion to Join Necessary Party, but Plaintiff filed a Notice of Settlement without having opposed that motion. Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter "should not have required anything more than [a] slight factual modification to [an] existing boilerplate." (See Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 250.)

The Court does not find a multiplier warranted here. (See Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1058 [judge has discretion to award multiplier]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139 ["a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party"].)

Considering these facts, the Court ultimately finds the amount billed somewhat excessive under the circumstances. In light of the foregoing discussion and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, using a lodestar methodology, is as follows:

1. Ashkan Reza, 10.0 hours multiplied by the hourly rate of \$550.00 for a subtotal of \$5,500.00;
2. Lauren Warwick, 35.0 hours multiplied by the hourly rate of \$425.00 for a subtotal of \$14,875.00;
3. Emily Mayers, 5.0 hours multiplied by the hourly rate of \$425.00 for a subtotal of \$2,125.00;
4. Michelle Nguyen, 8.0 hours multiplied by the hourly rate of \$140.00 for a subtotal of \$1,120.00;
5. Dianne Martin, 5.0 hours multiplied by the hourly rate of \$125.00 for a subtotal of \$625.00;
6. Adriana Hernandez, 4.0 hours multiplied by the hourly rate of \$95.00 for a subtotal of \$380.00;
7. Patrice Go, 2.0 hours multiplied by the hourly rate of \$125.00 for a subtotal of \$250.00;
8. Mailei Bennett, 1.0 hour multiplied by the hourly rate of \$175.00 for a subtotal of \$175.00;
9. Donya Akradi, 1.0 hour multiplied by the hourly rate of \$258.00 for a subtotal of 258.00; and
10. Noemi Antipuesto, 1.0 hour multiplied by the hourly rate of \$95.00 for a subtotal of 95.00.
11. Total Attorney Fees = \$25,403.00

The Court finds this to be the reasonable amount billed for all tasks in this matter, including for fees incurred in connection with this Motion.

Costs and Expenses

Plaintiff withdrew the costs request. (Reply, 7:11-15.)

Based on the foregoing, the Court GRANTS the Motion in the amount of \$25,403.00.

CONCLUSION

The Court GRANTS Plaintiff's Motion for Attorney Fees, Costs and Expenses in the amount of \$25,403.00.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] Plaintiff initially requested \$2,130.55 in costs but withdrew that request after Defendant paid those costs during the pendency of this Motion. (Reply, 7:11-15.)